



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

DOT-E 12645
(FIRST REVISION)

400 Seventh St., S.W.
Washington, D.C. 20590

APR 10 2003

EXPIRATION DATE: March 31, 2005

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. **GRANTEE:** Draeger Safety Incorporated
Pittsburgh, PA
2. **PURPOSE AND LIMITATION:**
 - a. This exemption authorizes the transportation in commerce of certain non-DOT specification manifolded pressure vessels (spheres) containing Air, compressed. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. **REGULATORY SYSTEM AFFECTED:** 49 CFR Parts 106, 107 and 171-180.
4. **REGULATIONS FROM WHICH EXEMPTED:** 49 CFR § 173.301(f) and § 173.301(a)(f) in that each pressure vessel is not individually equipped with a pressure relief device; § 173.302a(a) and § 175.3 in that non-DOT specification pressure vessels are not authorized except as specified herein.
5. **BASIS:** This exemption is based on the application of Draeger Safety Incorporated dated March 26, 2003 submitted in accordance with § 107.109.
6. **HAZARDOUS MATERIALS (49 CFR § 172.101):**

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Air, compressed	2.2	UN1002	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packagings prescribed are non-DOT specification carbon composite pressure vessels (spheres) that are designed and manufactured in accordance with exemption DOT-E 10915 except that each sphere is not individually equipped with a pressure relief device. The sphere service pressure is 4,500 psig. Spheres must have a limited service life as specified in DOT-E 10915. Spheres must be manifolded in a sphere manifold assembly in accordance with Draeger drawings 33 50859, 33 50860, and 33 50866 on file with the Office of Hazardous Materials Exemptions and Approvals.

b. TESTING - Spheres must be requalified in accordance with the requirements of DOT-E 10915.

c. OPERATIONAL CONTROLS - Each sphere manifold assembly must be shipped in strong outside packaging. When the sphere manifold assembly is installed within a self contained breathing apparatus (SCBA), the SCBA must be shipped within strong outside packaging.

d. MARKING - Each outside packaging must be marked "DOT-E 12645".

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this exemption and the HMR.

b. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, cargo aircraft only, and passenger-carrying aircraft.

10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each aircraft used to transport packages covered by this exemption. The shipper must furnish a current copy of this exemption to the air carrier before or at the time the shipment is tendered.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

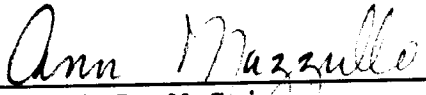
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

APR 10 2003

(DATE)

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Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO:CWF/sln